

07 NCAC 02H .0305 is proposed for amendment as follows:

07 NCAC 02H .0305 CIRCULATION

~~(a) The Library shall provide materials and playback equipment according to the Library of Congress lending policies.~~

~~(b) The Library shall furnish deposit collections to libraries, hospitals, rest homes, and other institutions serving eligible visually and physically handicapped persons.~~

~~(c) The following practices by any Library patron shall result in the suspension of Library services:~~

~~(1) repeated failure to return materials within the borrowing period;~~

~~(2) willful and negligent damage to equipment or materials;~~

~~(3) unauthorized use of materials or equipment, such as loan to an ineligible person or modification of equipment; or~~

~~(4) repeated abusive verbal attacks or behavior toward Library staff that is offensive or threatening.~~

(a) The Library shall provide materials and playback equipment to users in accordance with the Library of Congress' NLS Network Library Manual hereby incorporated by reference, including subsequent amendments and additions, and accessible to users free of charge at <http://www.loc.gov/nlsold/nlm/>.

(b) The following violations by any Library user shall result in the suspension of Library services:

(1) failure to return materials within the borrowing period. The borrowing period for materials are as follows:

(A) six weeks for books,

(B) two weeks for magazines, and

(C) three weeks for DVD and VHS tapes;

(2) damage to equipment or materials;

(3) unauthorized use of materials or equipment, such as loaning materials or equipment to an ineligible person or modification of items owned by the Library; or

(4) exhibiting verbal or physical behavior toward Library staff that is abusive, offensive, or threatening, as determined by the Director of the Library for the Blind and Physically Handicapped.

(c) The period of suspension shall not exceed six months as determined by the Director of the Library for the Blind and Physically Handicapped. In setting the period of suspension, the Director shall consider the violation, the extent of harm to the Library's property, and any violations previously committed by the user. The Director shall send a letter of suspension to the user via U.S. Mail. The letter shall specify the violation and the period of suspension. Upon expiration of the suspension period, the user shall contact the Library for resumption of services.

History Note: Authority G.S. 125-2; ~~143B-10~~;

Eff. May 1, 2011;

Pursuant to G.S. 150B-21.3A, rule is necessary without substantive public interest Eff. July 22, 2017.